CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

SECOND SECTION

DECISION

Application no. 5031/04
by Murat BOZLAK and Others
against Turkey

The European Court of Human Rights (Second Section), sitting on 6 January 2009 as a Chamber composed of:

Françoise Tulkens, *President,*
Ireneu Cabral Barreto,
Vladimiro Zagrebelsky,
Danutė Jočienė,
András Sajó,
Nona Tsotsoria,
Işıl Karakaş, *judges,*

and Sally Dollé, *Section Registrar*,

Having regard to the above application lodged on 23 September 2003,

Having regard to the observations submitted by the respondent Government,

Having deliberated, decides as follows:

THE FACTS

The applicants, Mr Murat Bozlak, Mr Hikmet Fidan and Mr Mehmet Mansur Reşitoğlu are Turkish nationals who were born in 1952, 1956 and 1970 respectively. The first applicant lives in Ankara, the second in İzmir and the third in Diyarbakır. They were represented before the Court by Ms Bedia Buran and Mr Mehmet Nuri Özmen, lawyers practising in Ankara. The Turkish Government ("the Government") were represented by their Agent.

The facts of the case, as submitted by the parties, may be summarised as follows.

The first applicant was the leader of the People's Democracy Party (*Halkın Demokrasi Partisi,* "HADEP"). The second applicant was the chairman of HADEP's Istanbul branch and the third applicant was the chairman of HADEP's Diyarbakır branch. At various stages they were all prosecuted for lending assistance to an illegal organisation. The proceedings against the first and second applicants were ultimately suspended, whereas the third applicant was convicted.

Other proceedings were successfully initiated for the dissolution of HADEP (Constitutional Court decision of 13 March 2003, published in the Official Gazette on 19 July 2003). As an ancillary measure under Article 69 § 9 of the Constitution, the Constitutional Court banned the applicants and other HADEP members and leaders from becoming founder members, ordinary members, leaders or auditors of any other political party for a period of five years.

The applicants complained to the Court of breaches of Articles 6, 7, 9, 10, 11 and 14 of the Convention, as well as Article 3 of Protocol No. 1 to the Convention, in respect of these events.

THE LAW

After communication of the application to the respondent Government, the applicants were invited to comment on the observations which the Government had submitted to the Court.

By a letter dated 23 September 2008, sent by registered post, the applicants' representatives were notified that the period allowed for submission of their clients' observations had expired and that no extension of time had been requested. The representatives' attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the case.

According to the information obtained from the postal authority, the Registry's letter of 23 September 2008 was delivered to the applicants' representatives on 6 October 2008. No response to this letter has been received from the applicants or their representatives.

The Court considers that, in these circumstances, the applicants may be regarded as no longer wishing to pursue their application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its

Protocols which require the continued examination of the case. In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Sally Dollé
Registrar

Françoise Tulkens
President